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地政總署
LANDS DEPARTMENT

我們矢志努力不懈，提供盡善盡美的土地行政服務。
We strive to achieve excellence in land administration.

香港北角渣華道三三三號北角政府合署二十樓
20/F., NORTH POINT GOVERNMENT OFFICES
333 JAVA ROAD, NORTH POINT, HONG KONG

22 February 2016

Legal Advisory and Conveyancing Office ("LACO")

Circular Memorandum ("CM") No. 76

Fees charged for services delivered by LACO

A review of some of the non-statutory fees charged by LACO has recently been made and a revised list of fees will come into effect on **2 March 2016**. Fees demanded from that date will be at the rates set out in the Appendix notwithstanding any application for the service concerned may have already been made before that date.

LACO CM Nos. 74, 74A, 74B, 74C and 74D will be superseded as from **2 March 2016**.

Copy of this CM with the Appendix can be downloaded from the Lands Department website at www.landsd.gov.hk

For enquiries, please contact Mr. Simen Tong at Tel. No. 2231 3582.

(Mrs. Maria LAM)
Deputy Director/Legal
for Director of Lands

To : All Solicitors

c.c. Consumer Council
The Real Estate Developers Association of Hong Kong
The Hong Kong Institute of Surveyors
The Hong Kong Institute of Architects
The Hong Kong Association of Banks

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Appendix

Description	Rate with effect from <u>2.3.2016</u> (HK\$)
(A) <u>Lands Department Consent Scheme Fees</u>	
(1) Consent to agreement for sale and purchase	35,250
(2) Consent to assignment, deed of exchange, etc.	27,800
(3) Consent to tenancy agreement	5,610
(4) Consent to building mortgage/charge	9,050
(5) Consent to further building mortgage/charge	5,770
(6) Consent to amendment to approved form of agreement for sale and purchase, deed of mutual covenant, etc.	6,930
(7) Consent to deed of variation of approved building mortgage and/or further charge	10,000
(8) Approval of deed of mutual covenant	109,700
(9) Approval of sub-deed of mutual covenant, supplementary deed of mutual covenant or separate management agreement	40,150
(10) Approval of lease for communication network areas	11,000
(11) Reinstatement of consent to agreement for sale and purchase to sell uncompleted units before compliance, which has been suspended or cancelled for any reason	33,300
(B) <u>Government Lease Fees</u>	
(1) Preparation, signing and issue of Government lease and counterpart	63,450
(2) Surrender of Government lease or other tenancy from the Government (except in exchange for a new grant of land for N.T. Small House cases) for cases of 1-100 lots (Note)	21,350
(3) Surrender of Government lease or other tenancy from the Government in exchange for a new grant of land for N.T. Small House cases	7,330

Description	Rate with effect from <u>2.3.2016</u> (HK\$)
(C) <u>Government Built Housing Schemes Administrative Fees</u>	
(1) Underlease	4,060
(2) Deed of Surrender	3,050
(3) Mortgage/legal charge	3,090
(4) Receipt on discharge of a charge	1,710
(5) Deed of variation of underlease	2,070
(6) Deed of release	2,340
(7) Deed of disclaimer	2,710
(8) Undertaking	2,780
(9) Nomination of beneficial successor	1,700
(10) Appointment of appointed guardian	1,230
(11) Transfer of title to civil servant – assignment	3,850
(12) Transfer of title to civil servant – legal charge	2,920
(13) Transfer of title to civil servant – discharge of legal charge	2,400
(D) <u>Cooperative Building Societies Administrative Fees</u>	
(1) Receipt on discharge of a charge	2,170
(2) Transfer of title to civil servant – discharge of legal charge	1,800

Note: Fee for surrender of Government lease or other tenancy from the Government (except in exchange for a new grant of land for N.T. Small House cases) for cases with over 100 lots will be charged on an individual case basis to recover the cost to the Government of providing the service.